



**Global Infrastructure Management and EQT led
consortium - AES Corporation**

MN-70027

Phase 1 Determination

Acquisition may be put into effect

26 August 2026

1. Determination and statement of reasons

Notified acquisition	Investment funds advised, managed or owned by Global Infrastructure Management (GIM), EQT AB (EQT) and the Qatar Investment Authority (QIA)'s proposed acquisition of 100% of the share capital in The AES Corporation (AES Corporation) (the Acquisition). Following the Acquisition, AES Corporation would be jointly controlled by GIM and EQT.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirers, GIM, EQT and QIA, are institutional investors. They have the following relevant interests in Australia: ▪ Businesses in which GIM or a connected entity of GIM has an interest: ○ Akaysha, a renewable energy developer specialising in large-scale battery energy storage system ○ Recurrent, a global developer, owner and operator of large-scale solar and energy storage projects ○ Vena Energy, a renewable energy power producer with solar, wind and battery storage assets in the Asia-Pacific region ○ Nxzen, a technology and engineering consultant specialising in the energy, utilities, and infrastructure sectors. ▪ Businesses in which EQT or a connected entity of EQT has an Interest: ○ OX2, a developer of large-scale wind, solar and energy storage projects. ▪ Businesses in which QIA or a connected entity of QIA has an interest: ○ Endeavour Energy, a New South Wales electricity distribution network ○ Nebras Power, owns interests in large-scale renewable energy generation assets, including in Australia. The target, AES Corporation, owns and operates a global portfolio of power plants and utility systems that generate, transmit, distribute and sell electricity to wholesale and retail customers across residential, commercial, industrial and governmental sectors. AES Corporation operates in Australia through its interests in: ▪ 5B, which primarily manufactures prefabricated solar infrastructure ▪ Fluence Energy, which supplies energy storage products, software and related services.
Overlap and relationship	GIM, EQT and QIA's interests in Australian electricity generation, transmission and distribution in some cases overlap and/or have a

between the Parties	vertical relationship with AES Corporation's Australian operations (or the operations of a business in which AES Corporation has an interest) in solar energy and energy storage system product manufacturing, delivery and the provision of related services.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • there is limited overlap between GIM, EQT and QIA's interests and the AES Corporation's interests in Australia. • the merged entity would likely continue to face competition from alternative suppliers of solar farms & solutions and battery energy storage system products. • the merged entity would be unlikely to have the ability and incentive to foreclose rival battery energy storage system operators' access to battery energy storage system products and related services due to the availability of alternative suppliers, such as, CATL, CSI Solar, GE Vernova, Goldwind, Sungrow, Tesla and Wartsila.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act